

TERMS AND CONDITIONS OF USE AFFILIATE PROGRAM

Effective date:14.07.2025

These Terms and Conditions (hereinafter referred to as the "Agreement") govern the participation of individuals and entities ("Affiliates") in the AFFILIATE PROGRAM ("Program") operated and managed by the Company, a company incorporated under the laws of England and Wales with its registered office at [Company Address], trading under the brand name "the Network" (hereinafter referred to as "Company", "we", "our", or "us").

By registering and participating in the Program, you ("Affiliate", "you") agree to comply with and be bound by this Agreement.

This Agreement is governed by the laws of England and Wales. Any disputes arising under or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of England and Wales.

1. ELIGIBILITY AND REGISTRATION

1.1. You must be at least 18 years old and have full legal capacity to enter into this Agreement. By applying to the Program, you confirm that you are legally permitted to promote our offers in your jurisdiction.

1.2. Registration is subject to manual moderation. We reserve the right to approve or deny any application at our sole discretion without obligation to provide a reason.

1.3. You must provide accurate and complete information during the application process, including personal identification details, payment data, and intended traffic sources. Failure to do so may result in denial or termination of access to the Program.

1.4. It is your responsibility to ensure that your participation does not violate any local laws or regulatory requirements, consumer protection, and data privacy.

2. AFFILIATE OBLIGATIONS

2.1. Affiliates may only use approved traffic sources and advertising methods. The following are strictly prohibited:

- Fraudulent or incentivized traffic
- Traffic from bots, click farms, or auto-redirects
- Brand bidding or impersonating the Company or its partners
- Misleading creatives or false advertising

2.2. Affiliates must comply with all applicable UK advertising laws and regulations, including the Advertising Standards Authority (ASA) Code, the Gambling Commission requirements (if

applicable), and the CAP Code.

2.3. Use of sub-affiliates is permitted only with prior written approval. The Affiliate is fully responsible for the conduct of its sub-affiliates.

2.4. Affiliates must not mix compliant traffic with fraudulent or non-compliant sources. We reserve the right to disqualify leads, suspend campaigns, and withhold payments in such cases.

2.5. The Company may audit the Affiliate's traffic and campaign results. Affiliates agree to provide campaign data, screenshots, and analytics upon request.

2.6. The Affiliate undertakes to cooperate with the Company in good faith and to provide any documents or clarifications reasonably requested for the purposes of compliance with applicable laws and verification procedures.

2.7. The Affiliate confirms that they are acting on their own behalf and not as an agent or representative of a third party unless explicitly disclosed in writing. All affiliate sub-partners must be disclosed and approved by the Company.

2.8. The Company reserves the right to deny payment for traffic that results in chargebacks, fraud, or violates offer KPIs, at its sole discretion. If such traffic exceeds reasonable thresholds, the Company may terminate the Agreement and initiate legal recovery.

3. OFFERS AND KPI

3.1. Offers may be subject to individual test caps and KPI targets prior to full-scale access.

3.2. Key performance indicators (KPIs) are offer-specific and include but are not limited to:

- Conversion rates
- Lead quality
- Player retention and deposits
- Fraud score

3.3. Failure to meet minimum KPI requirements may result in rejection of leads, hold of payment, or termination of the Agreement.

3.4. Offer terms and payouts are subject to change at any time. Notice will be provided via the affiliate dashboard or email.

4. PAYMENTS

4.1. The minimum payout threshold is USD 30 or equivalent in other currencies, subject to the

chosen payment method.

4.2. Payments are made upon request or based on automated cycles, subject to advertiser reconciliation.

4.3. Payouts are typically subject to a 14–30 day hold period and may take up to 45 business days to process. We are not liable for delays by third-party processors.

4.4. Accepted payment methods include but are not limited to:

- Capitalist
- Wire Transfer (SWIFT/SEPA)

- Other methods upon agreement

4.5. The Company reserves the right to withhold payments in cases of suspected fraud, non-compliance with offer terms, or unresolved disputes.

4.6. All amounts are calculated and paid in US Dollars unless otherwise agreed. Currency conversion fees are the responsibility of the Affiliate.

4.7. The Affiliate shall timely submit any invoices or payment requests in the manner specified by the Company. Failure to submit within 90 days may result in forfeiture of payment, unless otherwise agreed in writing.

4.8. The Company may withhold payment if the advertiser reports rejection of the lead or cancels the offer. The Affiliate agrees that the Company is not liable for non-payment by the advertiser unless otherwise contractually guaranteed.

5. ACCOUNT MANAGEMENT

5.1. You are responsible for maintaining the confidentiality of your account credentials. You must not share access with third parties.

5.2. We reserve the right to terminate or suspend accounts for inactivity, violation of terms, or suspected abuse.

5.3. Duplicate accounts are not permitted. Any duplicate or fraudulent account will be immediately deactivated without payment.

5.4. Affiliates must ensure that affiliate tracking links are implemented properly. The Company is not responsible for lost commissions due to broken or misused links.

5.5 The account owner is defined as the individual who owns the email address provided during account registration. All payments will be made to this account.

6. INTELLECTUAL PROPERTY

6.1. All rights in and to the Program, including but not limited to its design, technology, trademarks, offers, and creatives, remain the exclusive property of the Company and its licensors.

6.2. You are granted a non-exclusive, revocable, non-transferable license to use our intellectual property solely for the promotion of approved offers.

6.3. You may not modify, reverse-engineer, or misuse any materials or content provided.

6.4. All data related to leads or clients generated through the Program shall remain the sole property of the Company, unless otherwise agreed. The Affiliate shall not use such data for any purposes outside the scope of this Agreement.

7. DATA PROTECTION AND PRIVACY

7.1. Both parties shall comply with all applicable data protection laws, including the UK GDPR and the Data Protection Act 2018.

7.2. You must not collect, store, or share personal data of end users without appropriate legal basis and data subject consent.

7.3. We may process limited data about you (e.g., name, email, payment details) for purposes of managing the Program. Please refer to our Privacy Policy for details.

8. LIMITATION OF LIABILITY

8.1. Nothing in this Agreement limits liability for death or personal injury caused by negligence, fraud, or any other liability that cannot be lawfully excluded.

8.2. Subject to the above, we shall not be liable for any indirect, incidental, or consequential damages, including loss of profit, revenue, or opportunity, arising from your participation in the Program.

9. TERMINATION

9.1. Either party may terminate this Agreement with 7 days' written notice.

9.2. We may terminate immediately in case of breach, fraud, or regulatory non-compliance.

9.3. Upon termination, you must cease all use of our materials and links. Outstanding payments will be processed after reconciliation.

10. GOVERNING LAW AND JURISDICTION

10.1. This Agreement shall be governed by and construed in accordance with the laws of England and Wales.

10.2. Any disputes arising in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of England and Wales.

11. AMENDMENTS

11.1. We may update these Terms from time to time. Continued use of the Program after such changes constitutes acceptance.

12. YOUR RIGHTS UNDER UK GDPR

12.1. Under the UK General Data Protection Regulation (UK GDPR), you have the following rights:

- Right to access your personal data
- Right to rectification of inaccurate data
- Right to erasure ("right to be forgotten")
- Right to restrict or object to processing
- Right to data portability

- Rights in relation to automated decision-making and profiling

12.2. To exercise any of these rights, please contact us at: [Company DPO Email]

12.3. You also have the right to lodge a complaint with the UK Information Commissioner's Office (ICO): <https://ico.org.uk/make-a-complaint/>

13. CONFIDENTIALITY

13.1. Each party shall keep all confidential information strictly confidential and not disclose it to any third party without prior written consent, unless required by law. This obligation survives the termination of the Agreement for a period of 2 years.